

When do I Need Authorization?

An authorization under the WSA is needed if any of the water in the dugout comes from groundwater or from a “stream” as defined under the WSA. An authorization can be a water licence or use approval. A water licence is long-term, while a use approval is for shorter-term use of up to 24 months.

An authorization is needed for a dugout that:

- has groundwater seepage or water that comes from a well. A dugout likely has groundwater seepage, unless it has an impermeable liner or was constructed with impermeable material that does not allow for any seepage (e.g., clay or bentonite clay) or
- in any way intercepts or is built within a stream (as defined under the WSA)

Multiple dugouts can often be placed on the same authorization, especially if they are on the same property and they share the water source. All dugouts and related works should be listed on the application.

An authorization is not required if: 1. the diversion, use, or storage is exempted by legislation (e.g. the diversion of water while fighting a fire or the use of groundwater for domestic purposes); OR, 2. the dugout fills entirely from precipitation or runoff. This means that all the following conditions are met:

- at no time is the dugout recharged by groundwater or stream water;
- the dugout has an impermeable liner or is constructed with impermeable material that does not allow for any seepage;
- the dugout is not constructed within a stream;
- any runoff entering the dugout is considered overland flow (i.e. not from a water source that is considered a stream under the WSA); AND,
- the conditions of the land surrounding the dugout prevent infiltration (e.g., frozen, saturated, or otherwise impervious).

What if the Dugout has a Mixed Water Supply?

If there is stream or groundwater in the dugout, then an authorization is required. An application should be made citing the primary source of water (i.e. surface or groundwater) and listing other possible water sources.

What is the Difference between a Dugout and a Dam?

A dam is a barrier constructed for the purpose of storing or diverting ground or surface water. Some dugouts have an artificial barrier or embankment constructed with the excavated material. If that barrier or embankment can retain water, then it is a dam. There are safety requirements under the Dam Safety Regulation if a dam is over 7.5 m tall or

capable of storing more than 10,000 m³ of water. More information on the Dam Safety Program can be found online.